

21STCV44465 21STCV44465

County: los-angeles

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Case Number: 21STCV44465 Hearing Date: September 2, 2026 Dept: 407

Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 2, 2026

CASE: U.S. Bank National Association, As Trustee for Velocity Commercial Capital Loan Trust 2019-3 v. Sannette Gite, As Trustee of the Vaughn Family Trust, et al.

CASE NO.: 21STCV44465

EX PARTE APPLICATION OF CROSS-DEFENDANT MARA ENTERPRISES TO FILE EMERGENCY MOTION IN LIMINE NO. 3 TO EXCLUDE FROM USE AT TRIAL DOCUMENTS PRODUCED BY CROSS-COMPLAINANT GITE AT MIDNIGHT ON FRIDAY, AUGUST 28, 2026, AND OTHER DOCUMENTS PRODUCED AFTER THE TRIAL EXHIBIT EXCHANGE AND NOT LISTED ON THE JOINT EXHIBIT LIST OR, IN THE ALTERNATIVE, IF SUCH DOCUMENTS ARE NOT EXCLUDED AT TRIAL, FOR A SHORT CONTINUANCE OF TRIAL TO PERMIT CROSS-DEFENDANTS AND THEIR EXPERTS TO EVALUATE THE UNTIMELY PRODUCED DOCUMENTS

I. INTRODUCTION¿

Cross-Defendant Mara Enterprises applies ex parte for an order (1) to file emergency motion in limine no. 3 to exclude from use at trial documents produced by Cross-Complainant Sannette Gite at midnight on Friday, August 28, 2026, and other documents produced after the trial exhibit exchange and not listed on the joint exhibit list or (2) alternatively, for a short continuance of trial to permit cross-defendants and their experts to evaluate the untimely produced documents.

For the reasons stated herein, each Ex Parte Application is GRANTED.¿

II. DISCUSSION

Pursuant to Code of Civil Procedure section 166(a)(4), the court rules on Cross-Defendant's Ex Parte Application in chambers.

“ ‘A court will not grant ex parte relief ‘in any but the plainest and most certain of cases.’” (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal.App.5th 253, 257.) Substantively, “[a]n applicant must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte.” (Cal. Rules of Court, rule 3.1202(c) ‘A trial court should deny an ex parte application absent the requisite showing.’ (People ex rel. Allstate Ins. Co., at p. 257.)” (Newsom v. Superior Court (Sutter County) (2020) 51 Cal.App.5th 1093.)”

Here, Cross-Defendant demonstrates the requisite showing of irreparable harm or immediate danger to merit ex parte relief. After the depositions of Cross-Complainant and Cross-Defendant’s damages expert were taken, and on the eve of trial, Cross-Complainant inexplicably produced for the first time documents to support her claimed damages. As it appears to the court, Cross-Complainant’s actions have prevented Cross-Defendant from developing its defense to the damages at issue. Under these facts, the court finds Cross-Defendant is entitled to file a motion in limine on an expedited basis to demonstrate exclusion of the late-produced documents is warranted. The court will set a hearing date.

III. CONCLUSION

For the forgoing reasons, the ex parte application is Granted. The court sets a hearing date for September 8, 2026 to hear Cross-Defendant’s emergency motion in limine no. 3. The court construes Cross-Defendant’s ex parte application as the motion in limine. Cross-Complainant may file an opposition no later than September 3, 2026 at 4:30 p.m. Cross-Defendant may file a reply no later than September 4, 2026, at 3:00 p.m. Any opposition and reply is to be concurrently emailed to Department 407 pursuant to the foregoing deadlines.

The clerk of the court to give notice.

Dated: September 2, 2026

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✓ Brock T. Hammond✓✓

✓ Judge of the Superior Court✓